

Court No. - 21

Case :- WRIT - C No. - 23545 of 2024

Petitioner :- Rajendra Kumar

Respondent :- State Of Up And 2 Others

Counsel for Petitioner :- Arun Kumar Tripathi, Nasim Uddin

Counsel for Respondent :- C.S.C., Pranjal Mehrotra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Manish Kumar Nigam, J.

1. The petitioner has challenged the demand notice dated 01.09.2023 issued by respondent no. 3 for recovery of electricity dues in a sum of Rs. 1,79,494/-.
2. Learned counsel for the petitioner submits that the demand is illegal and the respondents have arbitrarily calculated the amount.
3. Shri Pranjal Mehrotra, learned counsel for the respondent Electricity Department submits that since it is a billing dispute and therefore, the petitioner has remedy under Clause 6.5 of Electricity Supply Code, 2005.
4. Having regard to the submissions made, we dispose of the instant petition with liberty to the petitioner to file objection against the impugned demand notice and in which event it would be decided by respondent no. 3 as provided under Clause 6.5 of the Electricity Supply Code, 2005.

Order Date :- 24.7.2024

Ved Prakash

(Manish Kumar Nigam, J.) (Manoj Kumar Gupta, J.)